



John F. Kennedy Assassination Records Collection Rules

A Rule by the National Archives and Records Administration on 06/27/2000



- PDF
- Document Details
- Document Dates
- Table of Contents
- Public Comments
- Regulations.gov Data
- Sharing
- Print
- Document Statistics
- Other Formats

PUBLISHED DOCUMENT: 00-16191 (65 FR 39550)

DOCUMENT HEADINGS

National Archives and Records Administration
36 CFR Part 1290 and Chapter XIV
RIN 3095-AB00

AGENCY:

National Archives and Records Administration (NARA).

ACTION:

Final rule.

SUMMARY:

NARA is transferring regulations providing guidance for the interpretation and implementation of the John F. Kennedy Assassination Records Collection Act of 1992 from [36 CFR chapter XIV](#) to chapter XII without substantive change. The Assassination Records Review Board that originally issued the regulations terminated on September 30, 1998, but NARA has determined that these regulations are still required to provide guidance to agencies.

EFFECTIVE DATE:

June 27, 2000.

FOR FURTHER INFORMATION CONTACT:

Nancy Allard at telephone number 301-713-7360, ext. 226, or fax number 301-713-7270.

SUPPLEMENTARY INFORMATION:

The Assassination Records Review Board was established by the John F. Kennedy Assassination Records Collection Act of 1992 (106 Stat. 3443). At the termination of the Review Board on September 30, 1998, its records were transferred to the Archivist of the United States. NARA continues to maintain and supplement the collection under the provisions of the Act. NARA is, therefore, the successor in function to this defunct independent agency.

The Review Board issued regulations at [36 CFR chapter XIV](#) providing guidance on the Act (part 1400) on June 28, 1995. In this final rule we are transferring those regulations without substantive change to a new [36 CFR part 1290](#) in new subchapter H. Agencies continue to identify records that may qualify as assassination records and need to have this guidance available.

Other Review Board regulations implementing Government in the Sunshine Act, FOIA, and the Privacy Act for the Board's own operations (parts 1405, 1410, and 1415) are withdrawn from the Code of Federal Regulations as unnecessary. The Board's records were transferred to NARA and are now subject to NARA regulations.

This rule is effective upon publication for "good cause" as permitted by the Administrative Procedure Act ([5 U.S.C. 553\(d\)\(3\)](#)). If the rule is not effective before July 1, 2000, the regulations of the defunct Review Board in [36 CFR ch. XIV](#) will continue to appear in the print and electronic copies of title 36. NARA believes that delaying the effective date for 30 days is unnecessary as this rule represents a minor technical amendment and there is no substantive impact on the public or Federal agencies.

This rule is not a significant regulatory action for the purposes of [Executive Order 12866](#) and has not been reviewed by the Office of Management and Budget. This rule does not have federalism implications and is not a major rule under [5 U.S.C. 801](#). As required by the Regulatory Flexibility Act, it is hereby certified that this rule will not have a significant impact on a substantial number of small entities.

List of Subjects in [36 CFR Part 1290](#)

- Archives and records

For the reasons set forth in the preamble and under the authority of Pub. L. 103-345 (108 Stat. 3128), NARA amends chapters XII and XIV of [title 36, Code of Federal Regulations](#), as follows:

CHAPTER XII—NATIONAL ARCHIVES AND RECORDS ADMINISTRATION

SUBCHAPTER H—JFK ASSASSINATION RECORDS

1. In [36 CFR ch. XII](#), establish Subchapter H, consisting of parts 1290 through 1299, and add a heading for Subchapter H to read as set forth above.

PART 1400—[REDESIGNATED AS PART 1290]

2. Redesignate [36 CFR part 1400](#) as part 1290 and reserve parts 1291-1299.

CHAPTER XIV—[VACATED]

PARTS 1405, 1410, 1415—[REMOVED]

3. In [36 CFR ch. XIV](#), remove parts 1405, 1410, and 1415, and vacate the chapter.

 ( printed page 39551)
Dated: June 21, 2000.

John W. Carlin,
Archivist of the United States.

HOME

- [Home](#)

SEARCH

- [Document Search](#)
- [Advanced Document Search](#)
- [Public Inspection Search](#)

INFORMATION

- [About This Site](#)
- [Legal Status](#)
- [Contact Us](#)
- [Privacy](#)
- [Accessibility](#)
- [FOIA](#)
- [No Fear Act](#)
- [Continuity Information](#)

SECTIONS

- [Money](#)
- [Environment](#)
- [World](#)
- [Science & Technology](#)
- [Business & Industry](#)
- [Health & Public Welfare](#)

READER AIDS

- [Office of the Federal Register Announcements](#)
- [Using FederalRegister.Gov](#)
- [Understanding the Federal Register](#)
- [Recent Site Updates](#)
- [Federal Register & CFR Statistics](#)
- [Videos & Tutorials](#)
- [Developer Resources](#)
- [Government Policy and OFR Procedures](#)

BROWSE

- [Agencies](#)
- [Topics \(CFR Indexing Terms\)](#)
- [Dates](#)
- [Public Inspection](#)
- [Executive Orders](#)

MY FR

- [My Clipboard](#)
- [My Subscriptions](#)
- [My Comments](#)
- [Sign In](#)